

Terms and Conditions

1. Contract Sparrow Path Ltd. having Company Registration Number - 17045182, whose registered office is at C/O Metropolitan Accountant Ltd Phoenix Business, Centre-Office 10 Rosslyn Crescent, HA1 2SP, Harrow, United Kingdom. These Booking conditions govern all bookings with Sparrow Path Limited t/a as www.sparrowpath.co.uk, operating offices at 81 Sweetcroft Lane, Uxbridge, UB10 9LG, United Kingdom. They vary depending on whether you book a "package" or "other holiday arrangements". A "package" is a combination of at least two of the following:- (a) transport (b) accommodation (c) another tourist service, providing those two or more components are sold to you at the same time at an inclusive price with full payment being made to the Company. Anything else (e.g. air tickets only, air tickets and accommodation booked at different times or a cruise only) constitutes "other holiday arrangements", which the Company makes as a booking agent, your contract being with the provider(s) (e.g. the airline or hotel) concerned, a copy of whose conditions are available on request. Any booking made or order placed by you, whether through the Company's website or otherwise, shall be deemed an offer by you to purchase the relevant package or other holiday arrangement subject to these booking conditions. No contract between you and the Company shall come into existence until the Company accepts full payment and issues a confirmation invoice. All contracts with the Company and all matters arising from them are subject to English law and to the exclusive jurisdiction of the courts of England and Wales. The person who makes the booking accepts these conditions on behalf of all members of the party and is responsible for all payment due from the party. Booking services with the company are currently only available to persons who are at least 18 years old. By submitting a booking you warrant and confirm to us that you comply with those arrangements.

2. YOUR FINANCIAL PROTECTION - The Package Travel, Package Holidays and Package Tours Regulations 1992 require us to provide security for the monies that you pay for the package holidays booked from this brochure and for your repatriation in the event of our insolvency. We provide this security by way of [a bond held by the Civil Aviation Authority under ATOL number _____ a bond held by Sparrow Path Ltd. If you book other holiday arrangements the financial protection referred to above does not apply.

3. PAYMENTS DEPOSIT - No booking will be confirmed unless the required deposit or full payment has been received by The Company at the time of booking. Deposits are non-refundable. Fares are not guaranteed until full payment has been received. BALANCE - You must pay the balance no later than 12 weeks from the date of travel, if not otherwise agreed in writing.

* Payments by Credit or Debit Card may incur a bank charge (if applicable).

Please note that for some bookings full payment may be required IMMEDIATELY i.e. before you receive confirmation. If this applies you will be advised when the booking is made. It is very important that you pay balances when due because failure to do so may lead to the cancellation of your holiday and still leave you liable to the cancellation charges. Where an extra "booking charge" applies this will have been advised at the time of booking.

4. ALTERATION & CANCELLATION BY YOU: CHANGING YOUR ARRANGEMENTS - If you wish to change any item - other than increasing the number of persons in your party - and providing we can accommodate the change, you will have to pay an amendment fee per person. These fees can vary greatly and will be advised at the time changes are made. All changes must be confirmed to us in writing. Please be aware that some travel arrangements cannot be changed once a reservation has been processed and therefore amendment charges could be as great as the total cost of your holiday. Certain travel arrangements (e.g. restricted fare tickets) cannot be changed or cancelled after a reservation has been made and any alteration will incur a 100% cancellation charge.

5. CANCELLATION PRIOR TO DEPARTURE - Should you or any member of your party be forced to cancel your holiday prior to departure, we must be notified in writing by the person who made the booking and who is therefore responsible for the payment of the cancellation charges.

(a) CANCELLATION AFTER TICKET ISSUE will result in loss of 100% of total cost of all travel arrangements in most cases. Please consult your reservation adviser.

(b) CHARTER FLIGHTS carry a 100% cancellation fee both before and after ticket issue.

6. CANCELLATION AND CHANGES BY THE COMPANY - It is unlikely that we will have to make any changes to your travel arrangements however occasionally, we may have to make changes and we reserve the right to do so at any time. Most of these changes will be minor and we will advise you of them at the earliest possible date. We also reserve the right in any circumstances to cancel your travel arrangements. For example, if the minimum number of clients required for a particular travel arrangement is not reached, we may have to cancel it. However, we will not cancel your travel arrangements less than 8 weeks before your departure date, except for reasons of force majeure or failure by you to pay the final balance. If we are unable to provide the booked travel arrangements, you can either have a refund of all monies paid or accept an offer of alternative travel arrangements of comparable standard from us, if available (we will refund any price difference if the alternative is of a lower value). If it is necessary to cancel your travel arrangements, we will pay to you compensation as set out in this clause, except where the reason for the cancellation is circumstances amounting to force majeure (see clause 7). In accordance with EU Regulation 2111/2005 we are required to advise you of the actual carrier operating your flight/connecting flight/transfer. Any changes to the actual airline will be notified to you as soon as possible. Such a change is deemed to be a minor change. Other examples of minor changes include alteration of your outward/return flights by less than 12 hours, changes to aircraft type, change of accommodation to another of the same standard. If we make a major change to your holiday, we will inform you as soon as reasonably possible if there is time before your departure. You will have the choice of either accepting the change of arrangements, accepting an offer of alternative travel arrangements of comparable standard from us if available (we will refund any price difference if the alternative is of a lower value), or cancelling your booked holiday and receiving a full refund of all monies paid. In all cases, except where the major change arises due to reasons of force majeure, we will pay compensation as detailed below: Period before departure within which notice of Cancellation or major change is notified to you Credit/compensation per full paying passengers (excluding infants). * More than 56 days - NIL, 43-56 days - £10, 29-42 days - £20, 8-28 days - £30, 0-7 days - £40 * For children invoiced at reduced rates, credit/compensation will be paid on a pro rata basis of the adult rate.

7. FORCE MAJEURE - "Force Majeure": includes war, threat of war, riot, civil disobedience or strife, industrial dispute, terrorist activity, natural or industrial disaster, fire, adverse weather conditions, level of water in rivers, unavoidable technical problems with transport, or unavoidable event beyond the Company's control.

8. PRICING POLICY - All fares and other information are subject to availability.

(a) Once a confirmation invoice has been issued the price shown on that invoice may only vary as outlined below or if you amend your booking. While every effort is made to avoid surcharges, the right is reserved to pass on any cost increase levied by the suppliers. No surcharge will ever be levied for air tickets after we have received full payment in cleared funds and tickets have been issued.

(b) "Packages": Prices may only be changed to reflect government action, increase in transportation costs (e.g. airfares and cost of fuel), changes in dues and taxes (including VAT) or fees payable for services (e.g. landing taxes or embarkation/disembarkation fees at ports and airports) or to reflect fluctuations in exchange rates. In the case of an increase in cost the Company may absorb upto an amount equivalent to 2% of the invoice price (excluding insurance premiums and amendment charges) and you will be asked to pay the remainder. In the case of a decrease in cost of over 3% of invoice cost, a refund may be considered.

9. DISPATCH OF TRAVEL DOCUMENTS/E-TICKETS - The address for all documentation will be that given at the time of booking. Documents will normally be emailed or dispatched 14 days before departure.

N.B. For bookings made within 14 days of departure it may be necessary for you to collect your air tickets at the airport or emailed to you. Any other vouchers will be posted/faxed/emailed to you direct. For additional security scheduled airline tickets are usually sent by Recorded Delivery and in this event it is your responsibility to ensure receipt/collection.

(a) LATE BOOKINGS may also require Registered/Courier delivery of documents in which case the appropriate charges will have been advised at the time of booking. Do not be alarmed if you don't receive traditional flight tickets. Several carriers have replaced these with electronic/e-tickets. These are printed on simple A4 pieces of paper with a specific number for each passenger. Other carriers only require confirmation number and do not issue any documentation at all.

10. IF YOU HAVE A COMPLAINT - If you have a problem during your holiday, please inform the relevant supplier (e.g. your hotelier) and our resort representative immediately who will endeavour to put things right. If your complaint is not resolved locally, please follow this up within 28 days of your return home by writing to our office, Sparrow Path Ltd, 81 Sweetcroft Lane, Uxbridge, UB10 9LG, United Kingdom or via email giving your booking reference and all other relevant information. Please keep your letter concise and to the point. This will assist us to quickly identify your concerns and speed up our response to you. It is strongly recommended that you communicate any complaint to the supplier of the services in question as well as to our representative without delay and complete a report form whilst in resort. If you fail to follow this simple procedure we will have been deprived of the opportunity to investigate and rectify your complaint whilst you were in resort and this may affect your rights under this contract.

11. OUR LIABILITY TO YOU - If the contract we have with you is not performed or is improperly performed by us or our supplier's compensation, where appropriate, will be paid. However we will not be liable where any failure in the performance of the contract is due to: you; or a third party unconnected with the provision of the travel arrangements and where the failure is unforeseeable or unavoidable; or unusual and unforeseeable circumstances beyond our control, the consequences of which could not have been avoided even if all due care had been exercised; or an event which we or our suppliers, even with all due care, could not foresee or forestall. Our liability, except in cases involving death, injury or illness, shall be limited to a maximum of 2 times the cost of your travel arrangements. Our liability will also be limited in accordance with and/or in an identical manner to: a) The contractual terms of the companies that provide the transportation for your travel arrangements. These terms are incorporated into this contract; and b) Any relevant international convention, for example the Montreal Convention in respect of travel by air, the Athens Convention in respect of travel by sea, the Berne Convention in respect of travel by rail and the Paris Convention in respect of the provision of accommodation, which limit the amount of compensation that you can claim for death, injury, delay to passengers and loss, damage and delay to luggage. We are to be regarded as having all benefit of any limitation of compensation contained in these or any conventions. You can ask for copies of the transport companies' contractual terms, or the international conventions, from our office, Sparrow Path Ltd, located at 81 Sweetcroft Lane, Uxbridge, UB10 9LG, United Kingdom. Under EU law (Regulation 261/2004) you have rights in some circumstances to refunds and/or compensation from your airline in cases of denied boarding, cancellation or delay to flights. Full details of these rights will be publicised at EU airports and will also be available from airlines. However reimbursement in such cases will not automatically entitle you to a refund of your holiday cost from us. If any payments to you are due from us, any payment made to you by the airline will be deducted from this amount. If your airline does not comply with these rules you should complain to the Air Transport Users' Council on 020 7240 6061 www.auc.org.uk

12. Prompt assistance in resort - If the contract we have with you is not performed or is improperly performed as a result of failures attributable to a third party unconnected with the provision of the services, or as a result of failures due to unusual and unforeseeable circumstances beyond our control, the consequences of which could not have been avoided even if all due care had been exercised, or an event which we or our suppliers, even with all due care, could not foresee or forestall, and you suffer

an injury or other material loss, we will offer you such prompt assistance as is reasonable in the circumstances.

13. **PASSPORTS, VISAS AND HEALTH REQUIREMENTS** - Clients not holding passports marked "British Citizen" must check applicable requirements with their Embassy, Consulate or the British Foreign Office. Please ensure that you are aware of all passport and visa requirements and that you allow adequate time to obtain them. Please note that many countries require that your passport is valid for six months beyond the period of your stay. Requirements can change and it is your responsibility to ensure that you comply with applicable passport, visa and health requirements and take all necessary documents with you to gain access to any country or region to which you make travel arrangements. If you fail to do so, you will be solely responsible for any cost, loss or damage which you or the Company incurs as a result of your failure.

14. **BEHAVIOUR** - It is your responsibility to ensure that you and the members of your party do not behave in a way which causes offence or danger to others or which risks damage to property belonging to others. In such circumstances all suppliers (e.g. hotel managers, airline pilots) and the Company have the right to terminate arrangements made on your behalf, in which case the Company's responsibility to you ceases immediately and there can be no refunds, no payment of compensation and no reimbursement of any cost or expenses you may incur as a result. Further, you will be liable to reimburse the Company for any expenses whatsoever it incurs as a result of your behaviour.

15. **FLIGHTS** - Please note that a flight described as "direct" will not necessarily be non-stop. All departure/arrival times are provided by the airlines concerned and are estimates only. They may change due to air traffic control restrictions, weather conditions, operational/maintenance requirements and the requirement for passengers to check in on time. The Company is not liable if there is any change to a departure/ arrival time previously given to you or shown on your ticket. It is for this reason that all clients are required to reconfirm their flights, with the airline, 72 hours prior to departure. The Company is also unable to make any special arrangements for you if you are delayed; these matters are in the sole discretion of the airline concerned. Your ticket is your document of travel and the information on the ticket is deemed correct unless the Company is advised by you within 72 hours (Seventy Two Hours) of receipt. All local airport departure taxes are not included within the "package" price.

16. **PRE TRAVEL ADVICE** - The Foreign and Commonwealth Travel Advice Unit may have issued information about your holiday destination. You are advised to check this information internet under the address www.fco.gov.uk. Alternatively, you can contact the ABTA information Department on 0906820520 (calls charged at 50p/minute).

17. **TRAVEL INSURANCE** - We strongly recommend that you take out travel insurance for your whole journey.

18. **SPECIAL REQUESTS AND MEDICAL PROBLEMS** - If you have any special requests, please advise us at time of booking. Although we will endeavour to pass any such requests on to the relevant supplier, we regret we cannot guarantee any request will be met. Failure to meet any special request will not be a breach of contract on our part. If you have any medical problem or disability which may affect your booked arrangements, you must advise us in writing at the time of booking giving full details. If we feel unable to properly accommodate your particular needs, we must reserve the right to decline/cancel your booking.

19. **BUILDING WORKS** - We cannot be held responsible for continual destination development but we will endeavour to advise you of any building work that we consider will affect the enjoyment of your holiday.

20. **EARLY ACCOMODATION CHECK-OUT** - If, for whatever reason, you check-out early from your pre-booked accommodation you are not guaranteed any form of refund for unused nights. The information

given to you by hotel staff may be incorrect in respect of refunds. Our contracts are with our suppliers and not hotels/apartments/villas directly and we must adhere to their terms and conditions.

21. YOUR FINANCIAL PROTECTION - When you buy an ATOL protected flight or flight inclusive holiday from us you will receive an ATOL Certificate. This lists what is financially protected, where you can get information on what this means for you and who to contact if things "go wrong."

22. We, or the suppliers identified on your ATOL Certificate, will provide you with the services listed on the ATOL Certificate (or a suitable alternative). In some cases, where neither we nor the supplier are able to do so for reasons of insolvency, an alternative ATOL holder may provide you with the services you have bought or a suitable alternative (at no extra cost to you). You agree to accept that in those circumstances the alternative ATOL holder will perform those obligations and you agree to pay any money outstanding to be paid by you under your contract to that alternative ATOL holder. However, you also agree that in some cases it will not be possible to appoint an alternative ATOL holder, in which case you will be entitled to make a claim under the ATOL scheme (or your credit card issuer where applicable).

23. If we, or the suppliers identified on your ATOL certificate, are unable to provide the services listed (or a suitable alternative, through an alternative ATOL holder or otherwise) for reasons of insolvency, the Trustees of the Air Travel Trust may make a payment to (or confer a benefit on) you under the ATOL scheme. You agree that in return for such a payment or benefit you assign absolutely to those Trustees any claims which you have or may have arising out of or relating to the non-provision of the services, including any claim against us, the travel agent (or your credit card issuer where applicable). You also agree that any such claims may be re-assigned to another body, if that other body has paid sums you have claimed under the ATOL scheme."